ATTORNEY OR PARTY WITHOUT ATTORNEY *(name, address, and State Bar number):*
After recording return to:

TEL NO.: FAX NO. *(optional):*
E-MAIL ADDRESS *(optional):*
ATTORNEY FOR *(name):*

SUPERIOR COURT OF CALIFORNIA, COUNTY OF
STREET ADDRESS:
MAILING ADDRESS:
CITY AND ZIP CODE:
BRANCH NAME:

FOR RECORDER'S USE ONLY

☐ ESTATE OF
☐ CONSERVATORSHIP OF *(name):*
☐ GUARDIANSHIP OF ☐ DECEDENT ☐ CONSERVATEE ☐ MINOR

ORDER CONFIRMING SALE OF REAL PROPERTY
☐ **and Confirming Sale of Other Property as a Unit**

CASE NUMBER:

FOR COURT USE ONLY

1. Hearing date: Time: Dept.: Rm.:

THE COURT FINDS

2. All notices required by law were given and, if required, proof of notice of sale was made.
3. a. ☐ Sale was authorized or directed by the will
   b. ☐ Good reason existed for the sale
   of the property commonly described as *(street address or location):*
4. The sale was legally made and fairly conducted.
5. The confirmed sale price is not disproportionate to the value of the property.
6. ☐ Private sale: The amount bid is 90% or more of the appraised value of the property as appraised within one year of the date of the hearing.
7. An offer exceeding the amount bid by the statutory percentages ☐ cannot be obtained ☐ was obtained in open court. The offer complies with all applicable law.
8. The ☐ personal representative ☐ conservator ☐ guardian of the estate of the decedent, conservatee, or minor has made reasonable efforts to obtain the highest and best price reasonably attainable for the property.

THE COURT ORDERS

9. The sale of the real property legally described ☐ in item 15 on page 2 ☐ on Attachment 9
   ☐ and other property sold as a unit described ☐ in item 15 on page 2 ☐ on Attachment 9 is confirmed to *(name):*

   (manner of vesting title):

   for the sale price of: $ on the following terms *(use item 15 on page 2 or Attachment 9 if necessary):*

   ☐ Continued in item 15 on page 2. ☐ Continued on Attachment 9.
10. The ☐ personal representative ☐ conservator ☐ guardian of the estate of the decedent, conservatee, or minor *(name):*
    is directed to execute and deliver a conveyance of the estate's interest in the real property described in item 9
    ☐ and other property described in item 9 sold as a unit upon receipt of the consideration for the sale.

Form Adopted for Mandatory Use
Judicial Council of California
DE-265/GC-065 [Rev. January 1, 2015]

Probate Code, §§ 2543, 10313
www.courts.ca.gov

☐ ESTATE OF ☐ CONSERVATORSHIP OF ☐ GUARDIANSHIP OF *(name):*	CASE NUMBER:

11. a. ☐ No additional bond is required.
    b. ☐ Additional bond is required in the amount of: $, surety, or otherwise, as provided by law.
    c. ☐ Net sale proceeds must be deposited by escrow holder in a blocked account to be withdrawn only on court order. Receipts must be filed. *(Specify institution and location):*

12. a. ☐ No commission is payable.
    b. ☐ A commission from the proceeds of the sale is approved in the amount of: $ to be paid as follows *(specify):*

13. Other *(specify, use Attachment 13 if necessary):*

14. Number of pages attached:

Date:

JUDICIAL OFFICER

☐ Signature follows last attachment.

15. ☐ (Check all that apply): ☐ Legal description of the ☐ real property ☐ personal property in item 9:
☐ Additional terms of sale from item 9:

[SEAL]	**CLERK'S CERTIFICATE** I certify that the foregoing *Order Confirming Sale of Real Property,* including any attached description of real or personal property, is a true and correct copy of the original on file in my office. Date: CLERK, by _____, Deputy

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